

Narayan Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 8 December 2023 · 2023:AHC:232849-DB · WRIT - C No. 42489 of 2023 · **Disposed with liberty to apply under clause 6.14 within 15 days**

HEADNOTE

A consumer ready to deposit an entire electricity-theft assessment in easy instalments is left to apply under clause 6.14 of the U.P. Electricity Supply Code. An application filed within 15 days must be decided by the authority within the next 15 days. The consumer may also, if so advised, seek the One Time Settlement scheme under Government Order dated 4 November 2023.

FACTUAL SUMMARY

The electricity department was demanding Rs. 4,46,396 from Narayan Singh as charges for theft of electricity. In Writ-C No. 42489 of 2023 his counsel told the Division Bench that he was ready and willing to deposit the entire dues in easy instalments. The Court recorded that offer, noted that he could also apply under the One Time Settlement scheme notified by Government Order dated 4 November 2023, and disposed of the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalments on electricity-theft dues the consumer offers to pay

HOLDING

Where the consumer is ready and willing to deposit the entire electricity-theft charges in easy instalments, he may move an application under clause 6.14 of the U.P. Electricity Supply Code before the authority concerned. If that application is made within 15 days, the authority shall decide it within the next 15 days. He may also, if so advised, apply under the OTS scheme floated by Government Order dated 04.11.2023. ¶ 2-4

PRINCIPLE TAGS

clause-6.14-instalments-on-accepted-dues

The petitioner offered to deposit the entire theft assessment and was left to seek instalments by a clause 6.14 application, which the authority must decide within 15 days if filed within 15 days.

¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY-THEFT ASSESSMENT OF RS. 4,46,396 WAS LAWFUL OR CORRECTLY QUANTIFIED

¶ 1

NOT DECIDED — WHETHER INSTALMENTS UNDER CLAUSE 6.14, OR RELIEF UNDER THE OTS SCHEME OF GOVERNMENT ORDER DATED 04.11.2023, SHOULD BE GRANTED

Both were left to an application before the authority. The Court only timed a clause 6.14 application filed within 15 days.

¶ 2-3